

25STCV06264 25STCV06264

County: los-angeles

Division: Civil Law and Motion

Department: 534

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Case Number: 25STCV06264 Hearing Date: September 17, 2026 Dept: 534

Background

On March 5, 2025, Vanessa Ortiz filed this employment action against Fuentes Family Insurance Agency. The First Amended Complaint, filed February 13, 2026, asserting seventeen causes of action.

Motion

On August 18, 2026, Defendant filed the instant motion seeking to transfer this action to the Pomona Courthouse South in the East District.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion

to Transfer Between Districts

Standard

The

Local Rules of the Superior Court of Los Angeles County govern the assignment of cases between its districts and departments. (Code Civ. Proc. § 402.) SCLAC Local Rule 2.3(b)(2) authorizes the Supervising Judge of the Civil Division to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote the ends of justice. (SCLAC Local Rule 2.3(b)(2).)

Considering that the same language appears in both SCLAC Local Rule 2.3(b)(2) and Code of Civil Procedure § 397(c), the Court finds that a party acting under the authority of Los Angeles Superior Court Local Rule 2.3(b)(2) should bear the burden of proof if it seeks a district transfer out of a presumptively correct forum, just as in motions for change of proper venue pursuant to Code of Civil Procedure section 397(c). (See *Lieberman v. Superior Court* (1987) 194 Cal.App.3d 396, 401.) That burden of proof should, moreover, call for affidavits that contain more than generalities and conclusions. (See *Hamilton v Superior Court* (1974) 37 Cal. App.3d 418, 424.) Such affidavits or declarations, like those for change of venue under Code Civ. Proc. section 397(c), should show the name of each witness, the expected testimony of each witness, and facts showing why the attendance of said witnesses at trial would be inconvenient or why the ends of justice would be served by a transfer. (See *Stute v. Burinda* (1981) 123 Cal. App. 3d Supp. 11, 17.) Convenience to non-party witnesses, not the convenience of parties or of the parties' own employees, is generally the relevant consideration. (Ibid. See also *J. C. Millett Co. v. Latchford-Marble Glass Co.* (1959) 167 Cal.App.2d 218, 227 ("While generally the convenience of the employees of either party will not be considered [Citations], when such employees are being called by an adverse party, the court may properly consider their convenience.").)

The

Case was Filed in a Permissible District

Defendant

seeks to transfer this action from the Stanley Mosk Courthouse to the Pomona Courthouse South in the East Judicial District of the Superior Court of Los Angeles County.

Defendant

contends the case was not filed in the correct district based upon the applicable Local Rules.

In

Column B of the civil case cover sheet addendum, Plaintiff identified the case as an employment case for wrongful termination. In "Step 4" of the civil case cover sheet addendum where the filing party is asked to "[c]heck the appropriate boxes for the numbers shown under Column C for the type of action that you have selected. Enter the address, which is the basis for the filing location including zip code," Plaintiff selected Reason 2, which

corresponds to optional filing in the Central District.

Pursuant

to the SCLAC Local Rules, rule 2.3(a)(1)(B), an employment case may be filed in three permissible locations: (1) in the Central District, (2) where the contract of employment was performed or (3) where the employer resides or does business. Defendant acknowledges “[a]s with any other case not specified in subd. (A) (torts and bodily injury claims), the optional filing rule allows them all to be filed in the Central District.” (Mot. at 5:26-28.)

Thus,

this case was properly filed in the Central District under the applicable Local Rules. A transfer cannot be granted based upon an asserted incorrect filing location.

The

Court Shall Transfer the Action

On

July 27, 2026, the parties submitted a stipulation and order to transfer the action and were directed to file a noticed motion. In the stipulation, the parties agreed “All witnesses identified to date reside and/or work within the East District of the Los Angeles County Superior Court (East District) . . . The East District, Pomona Courthouse, would be far more convenient for trial and hearings for all witnesses . . . employment agreement at issue in this action was entered into in the East District . . . All work to be performed and all incidents thereof under the employment agreement were to occur in the East District . . . The events giving rise to Plaintiff’s claims for Wrongful Termination, Retaliation, and Wage Violations occurred in the East District . . . [and] There is no material connection between this action and the Central District.” (Dieringer Decl. Ex. D.) Defendant’s counsel further notes “the Pomona Courthouse would be preferred and more convenient for the percipient witness to attend trial, then a long burdensome rush-hour drive into Downtown Los Angeles.” (Dieringer Decl. ¶ 7.)

The

Court is satisfied that the convenience of witnesses and ends of justice are supported by the requested, stipulated transfer.

The

motion is GRANTED.

Conclusion

Motion

to Transfer Case to Superior Court for Los Angeles County, East District Pomona
Courthouse is GRANTED.

All hearings currently set in 25STCV06264 are hereby
advanced and vacated.

Notice of case assignment shall be issued shortly.

Counsel for

Defendant to give notice.